

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED					
29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED	

Solicitation/Contract Form

Fitness Equipment Maintenance & Repair

Product Service Code: J078

0001

Product Service Code: J078

Supplies or Services & Prices or Costs

Additional Information/Notes

This contract is a five-year Indefinite Delivery Indefinite Quantity (IDIQ) contract with Firm Fixed Price (FFP) Contract Line Items (CLINS)/Exhibit Line Item Numbers (ELINS). The minimum contract value to be obligated is \$1,000.00. There are NO orders guaranteed above the stated minimum. The maximum contract value is \$100,000.00, which may consist of any combination of ELINS and quantities.

Item	Supplies / Services	Estimated Quantity	Unit	Unit Price	Amount
0001	Contractor shall perform Fitness Equipment Maintenance and Repair services in accordance with Attachment 1 PWS and Attachment 2 Price & Equipment List. Pricing Arrangement: Firm Fixed Price	100,000	Unit		

Description/Specifications/Statement of Work

Requirements
Fitness Equipment Maintenance and Repair

Packaging and Marking

Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See Statement of Work (SOW) or Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: N68869 CountryCode: USA NSW CENTER 2446 TRIDENT WAY BLDG 634, SAN DIEGO CA 92155-5494 SAN DIEGO, CA 92155-5494 UNITED STATES
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Deliveries or Performance

Line Item	Delivery Schedule	Estimated Quantity	Address and POC
0001	Period of Performance From 27 May 2026 To 26 May 2031	100,000 Unit	

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.247-34	F.o.b. Destination.	Jan 1991		

Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

2-IN-1

- (iii) For customary progress payments based on costs incurred, submit a progress payment request.
- (iv) For performance based payments, submit a performance based payment request.
- (v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table* IDENTIFIED AT TASK ORDER LEVEL

Field Name in WAWF	Data to be entered in WAWF
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Pay Official DoDAAC	_____
Issue By DoDAAC	_____
Admin DoDAAC	_____
Inspect By DoDAAC	_____
Ship To Code	_____
Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

IDENTIFIED AT TASK ORDER LEVEL

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Special Contract Requirements

Contract Clauses

5652.204-9003 Disclosure of Unclassified Information (2023) Section H

(Added July 2023)

As prescribed in 5604.403(b), insert the following clause,

(a) The protection of sensitive but unclassified data reflecting Special Operations technologies, personnel, plans, and business associations requires due diligence on the part of those in possession of such information. The application of appropriate security measures to ensure the safekeeping of USSOCOM and company proprietary data, intellectual property, and personnel data is the responsibility of all parties who have access to such information. On September 21, 2001, the Department of Defense designated Headquarters US Special Operations Command (USSOCOM) a sensitive unit, as defined by Title 10 United States Code (USC) Section 130b (10 USC 130b). See DoD Manual 5400.07, Freedom of Information Act Program, dated 25 January 2017 paragraph 5.2 c. (2)(a). In keeping with this designation, unclassified information related to USSOCOM military technology acquisitions managed by USSOCOM or any of its component commands, will be designated Controlled Unclassified Information (CUI). As such, the contractor hereby unequivocally agrees that it shall not release to anyone outside the Contractor's organization any unclassified information, regardless of medium (e.g., film, tape, document, contractor's external website, newspaper, magazine, journal, corporate annual report, email, text, conversation, social media, etc.), pertaining to any part of this contract or any program related to this contract, unless the Contracting Officer has given prior written approval. Furthermore, any release of information which associates USSOCOM, Special Operation Forces (SOF), or any component command with an acquisition program, contractor, or this contract is prohibited unless specifically authorized by the Contracting Officer.

(b) That contractor shall submit a written request for approval and shall identify the specific information to be released, the medium to be used, and the purpose for the release. The contractor shall submit the request to the Contracting Officer at least 60 days before the proposed date for release for approval. No release of any restricted information shall be made without specific written authorization by the Contracting Officer.

The Contractor shall include a similar requirement to this clause in each subcontract under this contract to affect this requirement at each level of subcontracting. Subcontractors shall submit request for authorization to release through the prime contractor to the Contracting Officer.

(c) The Contractor further understands that Title 18 USC Section 701 specifically prohibits the use of the USSOCOM emblem or logo in any manner or medium (e.g., corporate website, marketing brochure, newspaper, magazine, etc.) unless authorized in writing by the Contracting Officer. A written request for use of the USSOCOM emblem or logo shall be submitted to Contracting Officer at least 60 days before proposed use. Forward any request to use the USSOCOM emblem or logo through the Contracting Officer.

5652.204-9004 Foreign Persons (2006) Section K

As prescribed in 5604.404-80, insert the following clause,

In accordance with restrictions required by Executive Order 12470, the Arms Export Control Act (Title 22, USC) (Sec 275), the International Traffic in Arms Regulation (ITAR), or DoD Directive 5230.25, Withholding of Unclassified Technical Data from Public Disclosure, no foreign persons will be permitted to work on a contract without notifying the Contracting Officer. Provide the following information for all foreign persons who will be working on the contract (or "X" here if there are no such individuals:):

- (1) Full Name:
- (2) Date of Birth:
- (3) Place of Birth:
- (4) Nationality:
- (5) Social Security Number:
- (6) Visa Status:
- (7) Current Address:
- (8) If a Subcontractor, Subcontractor Name and Address:
- (9) Biographic data and/or resume

5652.216-9001 Oral Orders - Indefinite Delivery Contracts (2005) Section I

As prescribed in 5616.506(a), insert the following clause, Editable and Fill-ins

The Contracting Officer may issue oral orders subject to the following:

- (a) No oral order will exceed \$10,000.
- (b) The contractor will furnish a delivery ticket with each shipment in triplicate, showing: contract number, order number under the contract, date order was placed, name and title of person placing the order, an itemized listing of supplies or services furnished, unit price, unit of issue, quantity and total price for each line item, and the delivery or performance date.
- (c) Invoices for supplies or services furnished in response to oral orders shall be transmitted electronically along with an electronic copy of the delivery ticket to (insert name or office and URL address).
- (d) Contracting/Ordering Officers shall electronically transmit to the contractor a list of individuals authorized to place oral orders on behalf of the ordering activity.
- (e) The contractor will receive an electronic confirmation notice for each oral order within ten (10) working days of receipt.

5652.216-9004, Procedures for Issuing Task/Delivery Orders under Single Award, Indefinite Delivery-Indefinite Quantity Contracts (2003) Section H

As prescribed in 5616.506(c), insert the following clause, Editable and Fill-ins

(a) Soliciting Task/Delivery Order Proposals: When the Government has a requirement for services/supplies to be performed/delivered under this contract, the Contracting Officer will issue a request for task/delivery order proposal either in writing/by telephone/ electronic transmission. Each request will include, but not necessarily be limited to, the following:

- (1) Request for proposal number and/or title;
 - (2) Contract Number;
 - (3) Statement of Work;
 - (4) Instructions to Offerors;
 - (5) Items to be delivered and delivery schedule/performance period; and
 - (6) A listing of Government furnished property to be provided to the Contractor, if required.
- (b) Urgent Requirements: In the event of an urgent requirement, the Contractor shall provide a written proposal within the timeframe specified by the Contracting Officer in the specified format.
- (c) Submission of Proposals: The Contractor's proposal must comply with the Instructions to Offerors included in the request for task order proposal. The Contractor shall have no more than enter appropriate number of days to submit their proposals, unless:
- (1) A longer timeframe is specified in the request for task order proposal, or
 - (2) It is an urgent requirement.

5652.228-9000 Required Insurance (2015) Section G

(Revised December 2015)

As prescribed in 5628.310, insert the following clause, Editable and Fill-ins

The kinds and minimum amounts of insurance required in accordance with FAR 52.228-5 "Insurance-Work on a Government Installation" are as follows:

TYPE	AMOUNT
Automobile Bodily Injury Liability	In accordance with FAR 28.307-2
Property Damage Liability	In accordance with FAR 28.307-2
Workers Compensation & Occupational Disease	In accordance with FAR 28.307-2
Employer's Liability	In accordance with FAR 28.307-2

5652.233-9000 Independent Review of Agency Protest Decision (2018) Section I

(Revised November 2018)

As prescribed in 5633.106, insert the following clause,

In accordance with FAR 33.103(d)(4), interested parties may request an independent review at one level above the contracting officer. The independent review is available as an appeal of the contracting officer's decision on an agency protest. Requests for an independent review shall be submitted to the Contracting Officer for coordination.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-13	System for Award Management-Maintenance. (Deviation)	Feb 2026		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation)	Feb 2026		
52.222-3	Convict Labor. (Deviation)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation)	Feb 2026		
52.223-23	Sustainable Products. (Deviation)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		

252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023
252.232-7010	Levies on Contract Payments.	Dec 2006
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023
252.247-7023	Transportation of Supplies by Sea.	Oct 2024

FAR Clauses Incorporated by Full Text

52.216-18 Ordering. (Aug 2020)

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from date of award through FINAL DAY OF LAST ORDERING PERIOD.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations. (Oct 1995)

Order Limitations (Oct 1995)

(a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than 1 EACH OF ANY ELIN[insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \$100,000;

(2) Any order for a combination of items in excess of \$100,000; or

(3) A series of orders from the same ordering office within 3 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 3 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity. (Deviation) (Feb 2026)

INDEFINITE QUANTITY (FEB 2026) (DEVIATION)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(End of clause)

(Nov 1999)

(End of clause)

(Mar 2000)

(End of clause)

(May 2014)

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
_____	_____
_____	=====
_____	=====
_____	=====

_____	=====
_____	=====
_____	=====

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://acquisition.gov/>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

List of Attachments

- Attachment 1 PWS 260318
- Attachment 2 - Price & Equipment List 260319
- Attachment 3 DoL WD 2015-5635 Rev 29 251203

Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

DFARS Clauses Incorporated by Full Text

252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	(May 2021)
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PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it **will / will not** provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Instructions, Conditions, & Notices to Offerors or Quoters

ADDENDA 52.212-1

Quotation Administration Information:

Quotes are due no later than the date and time specified on page 1 of this RFQ. All quotes must be clearly marked with the RFQ number and SHALL be sent via email to kelly.mcneill@socom.mil

Questions: All questions regarding this requirement shall be submitted via email no later than 12:00PM EST on 14 April 2026 to kelly.mcneill@socom.mil.

Note: The Government will begin immediate review and evaluation of the submissions following the RFQ closing date and time. Therefore, submissions or information requests about this RFQ received after the closing date and time are considered late and will not be accepted.

Quote Format And Content. Individual emails may not exceed 10 MB. Submissions with .zip files are not acceptable and will not be delivered by the government email server. The government server does not generate rejection notices, and it may not forward a file if quarantined by the edge device. As such it is the vendor's responsibility to ensure its quote is received by the Government inbox by the date and time specified. The quote page format will be 8 1/2" x 11". A pages defined as one face of a sheet of paper containing information. Type shall not be less than 10 pitch. Elaborate formats or color presentations are not desired or required.

Submission Requirements:

Administrative - Completed fill-in sections of the following clauses:

- 252.204-7017
- 5652.204-9004

Terms and Conditions: The Quoter must include a statement that it either -

1. Agrees to the terms and conditions of this solicitation (which consists of the entire RFQ, including all documents, and attachments that are incorporated therein by reference and made a part thereof) and any solicitation amendments; or
2. Takes exceptions to any terms or conditions of the solicitation and clearly identifies those exceptions. Quoters must clearly identify any exception to the solicitation terms and conditions and provide complete accompanying rationale. Exceptions to any of the terms and conditions of this RFQ will be considered by the Government and may render the quotation ineligible for award.

FACTOR 1 - TECHNICAL. Quoters shall submit a narrative response that clearly demonstrates their understanding of and approach to accomplishing the requirements set forth in Attachment 1 Performance Work Statement, paragraph 4, to include describing qualifications and certifications to perform services for the equipment identified within Attachment 2. Total page limit of the technical volume is 10 pages. The Technical quote should be as specific and complete as possible to clearly demonstrate to the Government that the Quoter understands the requirements set forth in Attachment 1 PWS.

FACTOR 2 - PRICE. The Quoter shall provide a firm fixed price for all items and years specified in Exhibit A-E ELIN Price List. All prices will be provided as a Firm Fixed Price. The Total Evaluated Price (TEP) will be automatically formulated by the Microsoft Excel spreadsheet provided by the Government, by calculating the total value of the Quoter's proposed pricing within the Exhibit, to include the value of the option at FAR 52.217-8, calculated at 50% of the value of optional ordering period five. The Quoter shall not alter formula in the Microsoft Excel spreadsheet provided by the Government. The Government may require additional "other than certified cost and pricing data" prior to award.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation)	Feb 2026		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

FAR Clauses Incorporated by Full Text

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://acquisition.gov/>

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (48 CFR Chapter2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

Evaluation Factors for Award

FAR 52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation) (Feb 2026)

Be advised that the Government is conducting this acquisition in accordance with FAR Part 12 Acquisition of Commercial Products and Commercial Services. The Government will award one (1) contract resulting from this solicitation to the responsible Quoter whose quote conforming to the solicitation is the Lowest Price Technically Acceptable (LPTA). LPTA is defined as submission of a quote that complies with all terms and conditions contained within the Request for Quote (RFQ), is determined technically acceptable, AND that is lowest priced.

All quotes received from eligible Quoters will be initially evaluated for completeness and conformance with the RFQ instructions. Failure to follow the instructions may result in the quote being removed from further consideration for award. Incomplete and nonconforming quotes will not be further evaluated.

All quotes shall be considered in terms of price, lowest to highest, and then the apparent lowest-priced quote will be evaluated for acceptability under the technical factor. If the lowest-price quote is evaluated as unacceptable, the acceptability of the next lowest-price quote will be evaluated, continuing this process as necessary.

The Government may require additional "other than certified cost and pricing data" prior to award. The Government reserves the right to seek additional information from the lowest priced quoter for evaluation and award purposes without seeking information from other quoters or allowing other quoters to submit revised quotes. The Government reserves the right to not make any awards as a result of this RFQ.

The following factors shall be used to evaluate quotes:

Factor 1 -Technical Capability

The Government will evaluate information submitted by the Quoter for this factor and will make an acceptable or unacceptable rating.

- Acceptable is defined as the quote meets the requirements of the solicitation.
- Unacceptable is defined as the quote fails to meet the requirements of the solicitation.

Technical Criteria:

The Government will evaluate information submitted by the Quoter for this factor and will make an acceptable or unacceptable rating. Acceptable is defined as the proposed solution demonstrates that it meets all the identified requirements outlined in Attachment 1 Performance Work Statement, paragraph 4. Unacceptable is defined as the proposed solution does not demonstrate that it meets all stated requirements identified in Attachment1 Performance Work Statement, paragraph 4.

Factor 2 - Price

All prices provided in Exhibit A-E ELIN Price List will be evaluated for price reasonableness in accordance with FAR 12.204. The Total Evaluated Price (TEP) will be automatically formulated by the Microsoft Excel spreadsheet provided by the Government, by calculating the Quoter's proposed pricing for all five years, to include the value of the option at FAR 52.217-8, calculated at 50% of the value of ordering period five. Note that pricing for all items and years is required, otherwise the quote will be considered ineligible for award. The Government reserves the right at its discretion to seek additional information from the lowest priced quoter(s) for evaluation and award purposes without seeking information from other quoters or allowing other quoters to submit revised quotes.